

Shyamveer Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 January 2023 · WRIT - C No. 34184 of 2013 · **Petition dismissed for want of prosecution.**

HEADNOTE

Writ challenging an electricity demand notice dated 17.11.2012 dismissed for want of prosecution. An earlier Division Bench had stayed recovery while the licensee sought instructions after stating that unreasoned provisional assessments, allegedly non-compliant with the Electricity Supply Code (Ashok Kumar), had been withdrawn. The demand was not decided on merits.

FACTUAL SUMMARY

Shyamveer Singh challenged a demand notice dated 17 November 2012 arising from electricity assessment proceedings. At the first listing, counsel for the licensee stated that assessment proceedings in which unreasoned provisional assessment orders had been issued without details and without complying with the Electricity Supply Code, as held in Ashok Kumar, had been withdrawn, but sought instructions on this case. Recovery was stayed until further orders. After long adjournments, including an illness-slip listing, none appeared for the petitioner on 23 January 2023 even in the revised call.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

The writ petition challenging the electricity demand notice is dismissed for want of prosecution, none having appeared for the petitioner even in the revised call. The Court did not decide the validity of the demand or whether the provisional assessment complied with the Electricity Supply Code.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 17.11.2012 AND THE UNDERLYING PROVISIONAL ASSESSMENT COMPLIED WITH THE ELECTRICITY SUPPLY CODE

Licensee's counsel stated that unreasoned provisional assessments had been withdrawn; the petition was later dismissed for default without a merits decision. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008(6) ADJ 660 (DB)			1	Referred